

AMENDMENTS TO THE CALIFORNIA RULES OF COURT
Adopted by the Judicial Council on October 26, 2012, and April 26, 2013,
effective on July 1, 2013

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34		

1 **Rule 1.6. Definitions and use of terms**

2
3 (1)–(22) * * *

4
5 (23) “California Courts Web Site” means the Web site established by the Judicial
6 Council that includes news and information, reference materials, rules and forms,
7 and a self-help center. The address is: www.courtinfo.ca.gov.
8

9 *Rule 1.6 amended effective July 1, 2013; adopted as rule 200.1 effective January 1, 2003;*
10 *previously amended and renumbered effective January 1, 2007; previously amended effective*
11 *July 1, 2007, and July 1, 2008.*
12

13 **Rule 2.304. Direct filing**

14
15 (a)–(c) * * *

16
17 **(d) Presumption of filing**
18

19 A party filing by fax must cause the transmitting fax machine to print a
20 transmission record of each filing by fax. If the document transmitted to the court
21 by fax machine is not filed with the court because of (1) an error in the
22 transmission of the document to the court that was unknown to the sending party or
23 (2) a failure to process the document after it has been received by the court, the
24 sending party may move the court for an order filing the document nunc pro tunc.
25 The motion must be accompanied by the transmission record and a proof of
26 transmission in the following form:
27

28 ~~“At the time of transmission I was at least 18 years of age and not a party to this~~
29 ~~legal proceeding.~~ On (date) _____ at (time) _____, I transmitted to
30 the (court name) _____ the following documents (name)
31 _____ by fax machine, under California Rules of Court, rule 2.304.
32 The court’s fax telephone number that I used was (fax telephone number)
33 _____. The fax machine I used complied with rule 2.301 and no error was
34 reported by the machine. Under rule 2.304, I caused the machine to print a
35 transmission record of the transmission, a copy of which is attached to this
36 declaration.
37

38 “I declare under penalty of perjury under the laws of the State of California that the
39 foregoing is true and correct.”
40

41 *(Subd (d) amended effective July 1, 2013; previously amended effective January 1, 2007.)*
42

1 (e)–(f) * * *

2
3 *Rule 2.304 amended effective July 1, 2013; adopted as rule 2006 effective March 1, 1992;*
4 *previously amended effective July 1, 2006; previously amended and renumbered effective*
5 *January 1, 2007.*

6
7 **Rule 2.506. Fees for electronic access**

8
9 **(a) Court may impose fees**

10
11 The court may impose fees for the costs of providing public access to its electronic
12 records, under Government Code section 68150(h). On request, the court must
13 provide the public with a statement of the costs on which these fees are based.

14
15 *(Subd (a) amended effective July 1, 2013; adopted as part of unlettered subd effective July*
16 *1, 2002; previously amended and lettered effective January 1, 2007.)*

17
18 **(b) * * ***

19
20 *Rule 2.506 amended effective July 1, 2013; adopted as rule 2076 effective July 1, 2002;*
21 *previously amended and renumbered effective January 1, 2007.*

22
23 **Chapter 4. Special Proceedings on Construction-Related Accessibility Claims**

24 *Title 3, Civil Rules—Division 6, Proceedings—Chapter 4, Special Proceedings on Construction-*
25 *Related Accessibility Claims; adopted effective July 1, 2013.*

26
27 **Rule 3.680. Service of Notice of Stay and Early Evaluation Conference**

28
29 **(a) Service of Application and Notice**

30
31 The defendant who requested a stay and early evaluation conference on a
32 construction-related claim under Civil Code section 55.54 must, within 10 days of
33 issuance of the notice, serve on all other parties the application for stay and any
34 Notice of Stay of Proceedings and Early Evaluation Conference (form DAL-010)
35 issued by the court.

36
37 **(b) Filing Proof of Service**

38
39 A proof of service must be filed with the court 15 days before the date set for the
40 early evaluation conference. Proof of Service–Disability Access Litigation (form
41 DAL-012) may be used to show service of the documents.

42
43 *Rule 3.680 adopted effective July 1, 2013.*

1
2 **Rule 3.682. Notice of Mandatory Evaluation Conferences**

3
4 **(a) Service of Application and Notice**

5
6 The party who requested a mandatory evaluation conference on a construction-
7 related accessibility claim under Civil Code section 55.545 must, within 10 days of
8 issuance of the notice, serve on all other parties the application and any *Notice of*
9 *Mandatory Evaluation Conference* (form DAL-020) issued by the court.

10
11 **(b) Filing Proof of Service**

12
13 A proof of service must be filed with the court 15 days before the date set for the
14 early evaluation conference. *Proof of Service–Disability Access Litigation* (form
15 DAL-012) may be used to show service of the documents.

16
17 *Rule 3.682 adopted effective July 1, 2013.*

18
19 **Rule 3.1385. Duty to notify court and others of settlement of entire case**

20
21 **(a)–(b) * * ***

22
23 **(c) Conditional settlement**

24
25 **(1) Notice**

26
27 If the settlement agreement conditions dismissal of the entire case on the
28 satisfactory completion of specified terms that are not to be performed within
29 45 days of the settlement, including payment in installment payments, the
30 notice of conditional settlement served and filed by each plaintiff or other
31 party seeking affirmative relief must specify the date by which the dismissal
32 is to be filed. ~~If the plaintiff or other party required to serve and file a request~~
33 ~~for dismissal within 45 days after the dismissal date specified in the notice~~
34 ~~does not do so, the court must dismiss the entire case unless good cause is~~
35 ~~shown why the case should not be dismissed.~~

36
37 **(2) Dismissal**

38
39 If the plaintiff or other party required to serve and file a request for dismissal
40 within 45 days after the dismissal date specified in the notice does not do so,
41 the court must dismiss the entire case unless good cause is shown why the
42 case should not be dismissed.

1 (3) Hearings vacated

2
3 (A) Except as provided in (B), on the filing of the notice of conditional
4 settlement, the court must vacate all hearings and other proceedings
5 requiring the appearance of a party and may not set any hearing or
6 other proceeding requiring the appearance of a party earlier than 45
7 days after the dismissal date specified in the notice, unless requested
8 by a party.

9
10 (B) The court need not vacate a hearing on an order to show cause or
11 other proceeding relating to sanctions, or for determination of good
12 faith settlement at the request of a party under Code of Civil
13 Procedure section 877.6.

14
15 (4) Case disposition time

16
17 Under standard 2.2(n)(1)(A), the filing of a notice of conditional settlement
18 removes the case from the computation of time used to determine case
19 disposition time.

20
21 *(Subd (c) amended effective July 1, 2013; adopted effective January 1, 1989; previously*
22 *amended effective July 1, 2002, January 1, 2004, and January 1, 2006.)*

23
24 **(d)–(e) * * ***

25
26 *Rule 3.1385 amended effective July 1, 2013; adopted as rule 225 effective January 1, 1985;*
27 *previously amended and renumbered effective January 1, 2007; previously amended effective*
28 *January 1, 1989, January 1, 1992, July 1, 2001, July 1, 2002, January 1, 2004, January 1, 2006,*
29 *and January 1, 2009.*

30
31 **Rule 3.1702. Claiming attorney's fees**

32
33 **(a) * * ***

34
35 **(b) Attorney's fees before trial court judgment**

36
37 (1) * * *

38
39 (2) *Stipulation for extension of time*

40 The parties may, by stipulation filed before the expiration of the time allowed
41 under (b)(1), extend the time for filing a motion for attorney's fees:

42
43 (A) * * *

(B) If a notice of appeal is filed, until the time within which a memorandum of costs must be served and filed under rule 8.278(c) in an unlimited civil case or under rule ~~8.891(b)(2)~~ 8.891(c)(1) in a limited civil case.

(Subd (b) amended effective July 1, 2013; previously amended effective January 1, 1999, January 1, 2006, January 1, 2007, January 1, 2009, and January 1, 2011.)

(c)–(e) * * *

Rule 3.1702 amended effective July 1, 2013; adopted as rule 870.2 effective January 1, 1994; previously amended and renumbered effective January 1, 2007; previously amended effective January 1, 1999, January 1, 2006, July 1, 2008, January 1, 2009, and January 1, 2011.

Rule 4.102. Uniform bail and penalty schedules—traffic, boating, fish and game, forestry, public utilities, parks and recreation, business licensing

*** * ***

Note:

Courts may obtain copies of the Uniform Bail and Penalty Schedules by contacting:
Office of the General Counsel
Administrative Office of the Courts
455 Golden Gate Avenue
San Francisco, CA 94102-3688
(415) 865-7611
Fax (415) 865-4317
www.courtinfo.ca.gov/reference

Rule 4.102 amended effective July 1, 2013; adopted as rule 850 effective January 1, 1965; previously renumbered and amended effective January 1, 2001; previously amended effective January 1, 1970, January 1, 1971, July 1, 1972, January 1, 1973, January 1, 1974, July 1, 1975, July 1, 1979, July 1, 1980, July 1, 1981, January 1, 1983, July 1, 1984, July 1, 1986, January 1, 1989, January 1, 1990, January 1, 1993, January 1, 1995, January 1, 1997, July 1, 2004, and January 1, 2007.

Rule 4.541. Minimum contents of supervising agency reports

(a) Application

This rule applies to supervising agency petitions for revocation of formal probation, parole, mandatory supervision under Penal Code section 1170(h)(5)(B), and postrelease community supervision under Penal Code section 3455.

1 *(Subd (a) amended effective July 1, 2013; previously amended effective November 1,*
2 *2012.)*

3
4 **(b) Definitions**

5
6 As used in this rule:

7
8 (1) “Supervised person” means any person subject to formal probation, parole,
9 mandatory supervision under Penal Code section 1170(h)(5)(B), or
10 community supervision under Penal Code section 3451.

11
12 (2)–(4) * * *

13
14 *(Subd (b) amended effective July 1, 2013; previously amended effective November 1,*
15 *2012.)*

16
17 **(c)–(d) * * ***

18
19 **(e) Parole and Postrelease Community Supervision Reports**

20
21 In addition to the minimum contents described in (c), a report filed by the
22 supervising agency in conjunction with a petition to revoke parole or postrelease
23 community supervision ~~under Penal Code section 3455~~ must include the reasons
24 for that agency’s determination that intermediate sanctions without court
25 intervention as authorized by Penal Code sections 3000.08(f) or 3454(b) are
26 inappropriate responses to the alleged violations.

27
28 *(Subd (e) amended effective July 1, 2013; adopted effective November 1, 2012.)*

29
30 *Rule 4.541 amended effective July 1, 2013; adopted effective October 28, 2011; previously*
31 *amended effective November 1, 2012.*

32
33 **Advisory Committee Comment**

34
35 **Subdivision (c). * * ***

36
37 **Subdivision (c)(1)(D). * * ***

38
39 **Subdivision (c)(1)(E). *****

40
41 **Subdivision (e).** Penal Code sections 3000.08(d) and 3454(b) ~~authorizes~~ authorize
42 supervising agencies to impose appropriate responses to alleged violations of parole and
43 postrelease community supervision ~~under Penal Code section 3455~~ without court

intervention, including referral to a reentry court under Penal Code section 3015 or flash incarceration in a county jail. Penal Code sections 3000.08(f) and 3455(a) ~~requires~~ require the supervising agency to determine that the intermediate sanctions authorized by sections 3000.08(d) and 3454(b) are inappropriate responses to the alleged violation *before* filing a petition to revoke parole or postrelease community supervision ~~under Penal Code section 3455~~.

Rule 5.77. Summary dissolution

(a) Declaration of disclosure

To comply with the preliminary disclosure requirements of chapter 9 (beginning with section 2100) of part 1 of division 6 of the Family Code in proceedings for summary dissolution, each joint petitioner must complete and give each other copies of the following documents before signing a property settlement agreement or completing a divorce:

~~(1) A preliminary declaration of disclosure as described in Family Code section 2104 and *Declaration of Disclosure* (form FL-140); or~~

~~(2) The completed worksheet pages indicated in *Summary Dissolution Information* (form FL-810) listing separate and community property and obligations as well as a completed *Income and Expense Declaration* (form FL-150).~~

(1) *An Income and Expense Declaration* (form FL-150).

(2) Either of the following documents listing separate and community property assets and obligations:

(A) *Declaration of Disclosure* (form FL-140) and either a *Schedule of Assets and Debts* or a *Property Declaration* (form FL-160) with all attachments; or

(B) The completed worksheet pages indicated in *Summary Dissolution Information* (form FL-810).

(3) A written statement of all investment, business, or other income-producing opportunities that came up after the date of separation based on investments made or work done during the marriage or domestic partnership and before the date of separation.

(4) All tax returns filed by the spouse or domestic partner in the two year period before exchanging the worksheets or forms described in (2).

(Subd (a) amended effective July 1, 2013.)

(b) * * *

Rule 5.77 amended effective July 1, 2013; adopted effective January 1, 2013.

Rule 5.480. Application

This chapter addressing the Indian Child Welfare Act (25 United States Code section 1901 et seq.) as codified in various sections of the California Family, Probate, and Welfare and Institutions Codes, applies to ~~all~~ most proceedings involving Indian children that may result in an involuntary foster care placement; guardianship or conservatorship placement; custody placement under Family Code section 3041; declaration freeing a child from the custody and control of one or both parents; termination of parental rights; or adoptive placement; ~~including~~ This chapter applies to:

(1) ~~Proceedings under Welfare and Institutions Code section 300 et seq., and sections 601 and 602 et seq. in which the child is at risk of entering foster care or is in foster care, including detention hearings, jurisdiction hearings, disposition hearings, review hearings, hearings under section 366.26, and subsequent hearings affecting the status of the Indian child;~~

(2) Proceedings under Welfare and Institutions Code sections 601 and 602 et seq., whenever the child is either in foster care or at risk of entering foster care. In these proceedings, inquiry is required in accordance with rule 5.481(a). The other requirements of this chapter contained in rules 5.481 through 5.487 apply only if:

(A) The court's jurisdiction is based on conduct that would not be criminal if the child were 18 years of age or over;

(B) The court has found that placement outside the home of the parent or legal guardian is based entirely on harmful conditions within the child's home. Without a specific finding, it is presumed that placement outside the home is based at least in part on the child's criminal conduct, and this chapter shall not apply; or

(C) The court is setting a hearing to terminate parental rights of the child's parents.

~~(2)~~(3) Proceedings under Family Code section 3041;

~~(3)~~(4) Proceedings under the Family Code resulting in adoption or termination of parental rights; and

~~(4)~~(5) Proceedings listed in Probate Code section 1459.5 and rule 7.1015.

This chapter does not apply to voluntary foster care and guardianship placements where the child can be returned to the parent or Indian custodian on demand.

Rule 5.480 amended effective July 1, 2013; adopted effective January 1, 2008; previously amended effective January 1, 2013.

Rule 5.481. Inquiry and notice

(a) * * *

(b) Notice

(1) * * *

(2) If it is known or there is reason to know that an Indian child is involved in a wardship proceeding under Welfare and Institutions Code sections 601 and 602 et seq., ~~and the probation officer has assessed that it is probable the child will be entering foster care, or if the child is already in foster care,~~ the probation officer must send *Notice of Child Custody Proceeding for Indian Child* (form ICWA-030) to the parent or legal guardian, Indian custodian, if any, and the child's tribe, in accordance with Welfare and Institutions Code section 727.4(a)(2) in any case described by rule 5.480(2)(A)–(C).

~~(3)–(4)~~ * * *

(Subd (b) amended effective July 1, 2013; previously amended effective January 1, 2013.)

Rule 5.481 amended effective July 1, 2013; adopted effective January 1, 2008; previously amended effective January 1, 2013.

Advisory Committee Comment

Except for purposes of inquiry, the requirements of the Indian Child Welfare Act (ICWA) and related provisions of state law do not apply to most cases adjudicated under section 602 of the Welfare and Institutions Code for conduct that would be criminal if committed by an adult (see *In re W.B.* (2012) 55 Cal.4th 30). But in those cases where ICWA does not apply, following inquiry and receipt of information about Indian ancestry, the court is encouraged to communicate with

1 and voluntarily provide informal or formal notice to the Indian child's tribe regarding resources
2 and services to benefit the Indian child and his or her family. Such notice should particularly be
3 encouraged wherever the Indian child's tribe has previously intervened or participated in other
4 proceedings involving the child, such as earlier dependency or probate guardianship proceedings.
5 The California Legislature has stated: "[i]t is in the interest of an Indian child that the child's
6 membership in the child's Indian tribe and connection to the tribal community be encouraged and
7 protected...." (See Welf. & Inst. Code, §§ 224(a)(2), 306.6.) Further, Welfare and Institutions
8 Code section 727.1(a) mandates that in selecting a placement for a child under the supervision of
9 a probation officer, the court "shall consider, in order of priority, placement with relatives, *tribal*
10 *members*, and foster family...." (Emphasis added.) This mandate applies even if the case is not
11 governed by ICWA.

12
13 As a matter of policy and best practice, culturally appropriate placements and services provide
14 psychological benefit for the Indian child and family. By engaging the Indian child's tribe, tribal
15 members, Indian Health Services, or other agencies and organizations providing services to
16 Native Americans, additional resources and culturally appropriate services are often identified to
17 assist in case planning. (See Welf. & Inst. Code, §§ 727.4(d)(5),(6) & 16501.1(c)(1) for
18 information on services and case planning for children adjudicated under section 602.) Outreach
19 to these entities is also an important part of family finding and engagement efforts for Indian
20 children and of finding appropriate placements. By contacting the child's tribe, placement options
21 and services—such as substance abuse treatment, counseling, and other services—may be
22 available to Indian children and their families. A list of available services can be found on the
23 California Courts website at Program, Tribal/State Programs, ICWA, Statewide Directory of
24 Services for Native American Families, at www.courts.ca.gov/5807.htm.

26 **Rule 5.482. Proceedings after notice**

28 **(a) Timing of proceedings**

30 (1) * * *

32 (2) The detention hearing in dependency cases and in delinquency cases in which
33 the probation officer has assessed that the child is in foster care or it is
34 probable the child will be entering foster care described by rule 5.480(2)(A)–
35 (C) may proceed without delay, provided that:

37 (A)–(B) * * *

39 (3) The parent, Indian custodian, or tribe must be granted a continuance, if
40 requested, of up to 20 days to prepare for the proceeding, except for specified
41 hearings in the following circumstances:
42

- 1 (A) The detention hearing in dependency cases and in delinquency cases in
2 ~~which the probation officer has assessed that the child is in foster care~~
3 ~~or it is probable the child will be entering foster care~~ described by rule
4 5.480(2)(A)–(C);
- 5
- 6 (B) The jurisdiction hearing in a delinquency case described by rule
7 5.480(2)(A)–(C) in which the court finds the continuance would not
8 conform to speedy trial considerations under Welfare and Institutions
9 Code section 657; and
- 10
- 11 (C) The disposition hearing in a delinquency case described by rule
12 5.480(2)(A)–(C) in which the court finds good cause to deny the
13 continuance under Welfare and Institutions Code section 682. A good
14 cause reason includes when probation is recommending the release of a
15 detained child to his or her parent or to a less restrictive placement. The
16 court must follow the placement preferences under rule 5.484 when
17 holding the disposition hearing.
- 18

19 *(Subd (a) amended effective July 1, 2013; previously amended effective January 1, 2013.)*

20

21 **(b)–(f)** * * *

22

23 **(g) Consultation with tribe**

24

25 Any person or court involved in the placement of an Indian child in a proceeding
26 described by rule 5.480 must use the services of the Indian child's tribe, whenever
27 available through the tribe, in seeking to secure placement within the order of
28 placement preference specified in rule 5.484.

29

30 *(Subd (g) amended effective July 1, 2013.)*

31

32 *Rule 5.482 amended effective July 1, 2013; adopted effective January 1, 2008; previously*
33 *amended effective January 1, 2013.*

34

35 **Chapter 3. Adoptions under the Hague Adoption Convention**

36 *Title 5, Family and Juvenile Rules—Division 2, Rules Applicable in Family and Juvenile*
37 *Proceedings—Chapter 3, Adoptions under the Hague Adoption Convention; adopted effective July 1,*
38 *2013.*

39

1 **Rule 5.490. Adoption of a child resident in the United States by a resident of a**
2 **foreign country party to the Convention of 29 May 1993 on Protection of**
3 **Children and Cooperation in Respect of Intercountry Adoption (Convention**
4 **or Hague Adoption Convention)**
5

6 **(a) Purpose**
7

8 The rules in this chapter are adopted to provide practice and procedure for
9 intercountry adoptions conducted under the Hague Adoption Convention and
10 applicable California law.
11

12 **(b) Applicability of rule**
13

14 This rule applies to any adoption of a child resident in the United States by an
15 individual or individuals residing in a convention country, as defined in Family
16 Code section 8900.5(f), if, in connection with the adoption, the child has moved or
17 will move between the United States and the convention country.
18

19 **(c) Adoption request and attachments**
20

21 (1) The *Adoption Request* (form ADOPT-200) and *Verification of Compliance*
22 *with Hague Adoption Convention Attachment* (ADOPT-216) must allege
23 specific facts about the applicability of the Hague Adoption Convention and
24 whether the petitioner is seeking a California adoption, will be petitioning for
25 a Hague Adoption Certificate, or will be seeking a Hague Custody
26 Declaration.
27

28 (2) The court must determine whether a child resident in the United States has
29 been or will be moved to a convention country in connection with an
30 adoption by an individual or individuals residing in a convention country.
31

32 **(d) Evidence required to verify compliance with the Hague Adoption Convention**
33

34 If the Hague Adoption Convention applies to the case, and the court is asked to
35 issue findings and an order supporting a request for the U.S. Department of State to
36 issue a Hague Adoption Certificate or a Hague Custody Declaration for the
37 adoption placement, the court must receive sufficient evidence to conclude that the
38 child is eligible for adoption and find that the placement is in the best interest of the
39 child. The court must receive evidence of all of the following:
40

41 (1) The adoption agency or provider is accredited by the Council on
42 Accreditation, is supervised by an accredited primary provider, or is acting as

1 an exempted provider, as defined in Family Code section 8900.5(g), to
2 provide intercountry adoption services for convention cases;

3
4 (2) A child background study has been completed and transmitted to a foreign
5 authorized entity in accordance with the regulations governing convention
6 adoptions with proof that the necessary consents have been obtained and the
7 reason for its determination that the proposed placement is in the child's best
8 interest, based on the home study and child background study and giving due
9 consideration to the child's upbringing and his or her ethnic, religious, and
10 cultural background;

11
12 (3) The child is eligible for adoption under California law;

13
14 (4) The adoption agency or provider has made reasonable efforts, as described
15 under 22 Code of Federal Regulations section 96.54(a), to place the child in
16 the United States, but was unable to do so, or an exception to this
17 requirement applies to the case. Such reasonable efforts include: (1)
18 disseminating information on the child and his or her availability for adoption
19 through print, media, and Internet resources designed to communicate with
20 potential prospective adoptive parents in the United States; (2) listing
21 information about the child on a national or state adoption exchange or
22 registry for at least 60 calendar days after the birth of the child; (3)
23 responding to inquiries about adoption of the child; and (4) providing a copy
24 of the child background study to potential U.S. prospective adoptive
25 parent(s);

26
27 (5) The agency has determined that the placement is in the child's best interest;

28
29 (6) A home study on the petitioner(s) has been completed, which includes:

30
31 (A) Information on the petitioner(s), such as identity, eligibility and
32 suitability to adopt, background, family and medical history, social
33 environment, reasons for adoption, ability to undertake an intercountry
34 adoption, an assessment of their ability to care for the child, and the
35 characteristics of the child for whom they would be qualified to care;

36
37 (B) Confirmation that a competent authority has determined that the
38 petitioner is eligible and suited to adopt and has ensured that the
39 petitioner has been counseled as necessary; and

40
41 (C) The results of criminal background checks;
42

- 1 (7) The Hague Adoption Convention authority designated by the receiving
2 country has declared that the child will be permitted to enter and reside
3 permanently or on the same basis as the adopting parent(s) in the receiving
4 country, and has consented to the adoption;
5
6 (8) All appropriate consents have been obtained in writing in accordance with the
7 following standards:
8
9 (A) Counseling was provided to any biological or legal parent or legal
10 guardian consenting to the adoption;
11
12 (B) All biological or legal parents or legal guardians were informed of the
13 legal effect of adoption;
14
15 (C) Such consent was freely given without inducement by compensation;
16
17 (D) Such consent was not subsequently withdrawn; and
18
19 (E) Consents were taken only after the birth of the child.
20
21 (9) As appropriate in light of the child's age and maturity, the child has been
22 counseled and informed of the effects of the adoption and the child's views
23 have been considered. If the child's consent is required, the child has also
24 been counseled and informed of the effects of granting consent and has freely
25 given consent expressed or evidenced in writing in the required legal form
26 without any inducement by compensation of any kind;
27
28 (10) The adoption agency or provider has committed to taking all steps to ensure
29 the secure transfer of the child, including obtaining permission for the child
30 to leave the United States;
31
32 (11) The adoption agency or provider has agreed to keep the receiving country's
33 designated Hague Adoption Convention authority informed about the status
34 of the case;
35
36 (12) The petitioner consents to adoption or has agreed to accept custody of the
37 child for purposes of adoption;
38
39 (13) The adoption agency or provider demonstrates that any contact between the
40 birth family and the adoptive family complies with applicable state law and
41 federal regulations governing the timing of such communications; and
42

(14) The adoption agency or provider certifies that no one is deriving improper financial gain from the adoption and describes the financial arrangement with the prospective adoptive family.

(e) Court findings required to support the application for a Hague Adoption Certificate or Hague Custody Declaration

The court must make findings relating to the application for a Hague Adoption Certificate or Hague Custody Declaration from the Department of State. To meet the requirements for issuance of the certificate or declaration, the findings must include that:

- (1) The adoption is in the child's best interest;
- (2) The substantive regulatory requirements set forth in 22 Code of Federal Regulations sections 97.3(a)–(k) have been met; and
- (3) The adoption services provider meets the requirements of 22 Code of Federal Regulations part 96.

(f) Court findings to verify that all Hague Adoption Convention requirements have been met

If the court is satisfied that all Hague Adoption Convention requirements have been met, the court must make findings of fact and order the following:

- (1) The child is eligible for adoption;
- (2) The grant of custody with respect to the proposed adoption is in the child's best interest; and
- (3) The court grants custody of the child to the named family for purposes of adoption, as applicable.

(g) Petitioner's intent to finalize adoption

If the adoption is not finalized in California, a petition for a Hague Custody Declaration must state specific facts indicating that the petitioner intends to finalize the adoption in petitioner's country of residence or that petitioner will return to California after any required post-placement supervisory period to finalize the adoption in a superior court of California.

1
2 **Advisory Committee Comment**
3

4 The Hague Adoption Convention (HAC) is a treaty that entered into force with respect to the
5 United States on April 1, 2008. The HAC strengthens protections for children, birth parents, and
6 prospective adoptive parents and establishes internationally agreed-upon rules and procedures for
7 adoptions between countries that have a treaty relationship under the HAC. It provides a
8 framework for countries party to the Convention to work together to ensure that children are
9 provided with permanent, loving homes; that adoptions take place in the best interest of a child;
10 and that the abduction, sale, or traffic of children is prevented. This rule expands procedurally on
11 Family Code sections 8900 through 8925, which address intercountry adoptions, by specifying
12 the findings and evidence set forth in 22 Code of Federal Regulations section 97.3 that are
13 required by a state court when the HAC applies to an adoption.
14

15 **Rule 5.491. Adoption of a child resident in the United States by a resident of a**
16 **foreign country not party to the Hague Adoption Convention**
17

18 The adoption of a child resident in the United States by a resident of a foreign country not
19 party to the Hague Adoption Convention must conform to the law governing California
20 adoptions.
21

22 *Rule 5.491 adopted effective July 1, 2013.*
23

24 **Rule 5.492. Adoption by a United States resident of a child resident in a foreign**
25 **country that is party to the Hague Adoption Convention**
26

27 A United States resident who plans to adopt, in California, a child resident in a foreign
28 country that is party to the Hague Adoption Convention must provide to the California
29 court the required proof, in the form of a Hague Custody Declaration, that all required
30 Hague Adoption Convention findings have been made by the child's country of
31 residence.
32

33 *Rule 5.492 adopted effective July 1, 2013.*
34

35 **Rule 5.530. Persons present**
36

37 **(a) * * ***
38

39 **(b) Persons present**
40

41 The following persons are entitled to be present:
42

43 (1)–(6) * * *

(7) In a proceeding described by rule 5.480, a representative of the Indian child's tribe;

(8)–(11) * * *

(Subd (b) amended effective July 1, 2013; previously amended effective January 1, 1995, January 1, 1997, January 1, 2005, January 1, 2007, and January 1, 2012.)

(c)–(f) * * *

Rule 5.530 amended effective July 1, 2013; adopted as rule 1410 effective January 1, 1990; previously amended and renumbered effective January 1, 2007; previously amended effective January 1, 1995, January 1, 1997, January 1, 2001, January 1, 2005, and January 1, 2012.

Rule 5.555. Hearing to consider termination of juvenile court jurisdiction over a nonminor—dependents or wards of the juvenile court in a foster care placement and nonminor dependents (§§ 224.1(b), 303, 366.31, 391, 452, 607.3, 16501.1(f)(16))

(a)–(c) * * *

(d) Findings and orders

In addition to complying with all other statutory and rule requirements applicable to the hearing, the following judicial findings and orders must be made on the record and included in the written, signed court documentation of the hearing:

(1) * * *

(2) *Orders*

(A)–(B) * * *

(C) For a nonminor who does not meet and does not intend to meet the eligibility requirements for nonminor dependent status but who is otherwise eligible to and will remain under juvenile court jurisdiction in a foster care placement, the court must set a hearing under section 366.21, 366.22, 366.25, 366.3, 727.2, or 727.3 within six months of the date of the nonminor's most recent status review hearing.

(D)–(E) * * *

1 *(Subd (d) amended effective July 1, 2013; previously amended effective July 1, 2012.)*

2
3 *Rule 5.555 amended effective July 1, 2013; adopted effective January 1, 2012; previously*
4 *amended effective July 1, 2012.*

5
6 **Rule 5.785. General conduct of hearing**

7
8 **(a)–(b)** * * *

9
10 **(c) Case plan**

11
12 When a child is detained and is at risk of entering foster care placement, the
13 probation officer must prepare a case plan.

14
15 (1) * * *

16
17 (2) The court must consider the case plan and must find as follows:

18
19 (A) The probation officer solicited and integrated into the case plan the
20 input of the child, the child’s family, in a case described by rule
21 5.480(2)(A)–(C) the child’s identified Indian tribe, and other interested
22 parties; or

23
24 (B) The probation officer did not solicit and integrate into the case plan the
25 input of the child, the child’s family, in a case described by rule
26 5.480(2)(A)–(C) the child’s identified Indian tribe, and other interested
27 parties. If the court finds that the probation officer did not solicit and
28 integrate into the case plan the input of the child, the child’s family, the
29 child’s identified Indian tribe, and other interested parties, the court
30 must order that the probation officer solicit and integrate into the case
31 plan the input of the child, the child’s family, in a case described by
32 rule 5.480(2)(A)–(C) the child’s identified Indian tribe, and other
33 interested parties, unless the court finds that each of these participants
34 was unable, unavailable, or unwilling to participate.

35
36 (3)–(5) * * *

37
38 *(Subd (c) amended effective July 1, 2013; adopted effective July 1, 2002; previously*
39 *amended effective January 1, 2007.)*

40
41 *Rule 5.785 amended effective July 1, 2013; adopted as rule 1492 effective January 1, 1991;*
42 *previously amended effective July 1, 2002; previously amended and renumbered effective*
43 *January 1, 2007.*

1
2 **Rule 8.112. Petition for writ of supersedeas**

3
4 **(a) Petition**

5
6 (1)–(3) * * *

7
8 (4) If the record has not been filed in the reviewing court:

9
10 (A)–(B) * * *

11
12 (C) The documents listed in (B) must comply with the following
13 requirements:

14
15 (i) They must be bound together at the end of the petition or in a
16 separate volumes not exceeding 300 pages each. The pages must
17 be consecutively numbered;

18
19 (ii)–(iii) * * *

20
21 (5) * * *

22
23 *(Subd (a) amended effective July 1, 2013; previously amended effective January 1, 2007,*
24 *January 1, 2008, and January 1, 2010.)*

25
26 **(b)–(d) * * ***

27
28 *Rule 8.112 amended effective July 1, 2013; repealed and adopted as rule 49 effective January 1,*
29 *2005; previously amended and renumbered effective January 1, 2007; previously amended*
30 *effective January 1, 2008, January 1, 2009, and January 1, 2010.*

31
32 **Rule 8.454. Notice of intent to file writ petition under Welfare and Institutions Code**
33 **section 366.28 to review order designating specific placement of a dependent**
34 **child after termination of parental rights**

35
36 **(a)–(e) * * ***

37
38 **(f) Premature or late notice of intent to file writ petition**

39
40 (1) A notice of intent to file a writ petition under Welfare and Institutions Code
41 section 366.28 is premature if filed before a date for a postdetermination
42 placement order has been made. The reviewing court may treat the notice as
43 filed immediately after the postdetermination order has been made.

1
2 (2) * * *

3
4 *(Subd (f) amended effective July 1, 2013; adopted effective January 1, 2006; previously*
5 *amended effective January 1, 2007.)*
6

7 (g) * * *

8
9 (h) **Preparing the record**

10
11 When the notice of intent is filed, the superior court clerk must:

12
13 (1) * * *

14
15 (2) Within 20 days after the notice of intent is filed, prepare a clerk's transcript
16 that includes the notice of intent, proof of service, and all items listed in rule
17 ~~8.404(a)~~ 8.407(a).
18

19 *(Subd (h) amended effective July 1, 2013; adopted as subd (g) effective January 1, 2005;*
20 *previously amended and relettered effective January 1, 2006; previously amended effective*
21 *July 1, 2006, January 1, 2007, January 1, 2008, and July 1, 2010.)*
22

23 (i)–(j) * * *

24
25 *Rule 8.454 amended effective July 1, 2013; adopted as rule 38.2 effective January 1, 2005;*
26 *previously amended and renumbered effective January 1, 2007; previously amended effective*
27 *January 1, 2006, July 1, 2006, January 1, 2008, January 1, 2009, and July 1, 2010.*
28

29 **Rule 10.855. Superior court records sampling program**

30
31 (a)–(k) * * *

32
33 (l) **Reporting requirement**

34
35 Each superior court must submit semiannually to the Judicial Council a *Report to*
36 *the Judicial Council: Superior Court Records Destroyed, Preserved, and*
37 *Transferred* (form ~~982.8A~~ REC-003), including the following information:
38

39 (1)–(3) * * *

40
41 *(Subd (l) amended effective July 1, 2013; previously amended effective January 1, 1994,*
42 *January 1, 1995, January 1, 2001; and January 1, 2007.)*
43

1 *Rule 10.855 amended effective July 1, 2013; adopted as rule 243.5 effective July 1, 1992;*
2 *previously amended and renumbered as rule 6.755 effective January 1, 2001, and as rule 10.855*
3 *January 1, 2007; previously amended effective January 1, 1994, January 1, 1995, and January 1,*
4 *2011.*
5